

represents that other areas of examination remain independent of the wage loss documents.

SANCTIONS

If a motion to compel deposition is granted, the Court “shall impose a monetary sanction . . . in favor of the party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.” (CCP § 2025.450(g)(1).)

Here, the Court finds sanctions unwarranted. As discussed above, Defendant’s meet-and-confer efforts consisted exclusively of written correspondence and did not satisfy the requirements of section 2016.040(a). In addition, the parties’ dispute over whether the June 25 session was “completed,” and whether relieving the reporter without securing a backup constituted a “suspension,” though ultimately unpersuasive, is not frivolous. Thus, Plaintiff’s opposition to the motion appears to have been substantially justified within the meaning of section 2025.450(g)(1).

2.

CASE #	CASE NAME	HEARING NAME
CVRI2404809	OGDEN vs FCA US, LLC.	MOTION TO BE RELIEVED AS COUNSEL FOR RYAN J OGDEN

Tentative Ruling: Appearances required.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2504852	THOMAS vs SHI	JOINDER TO MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Defendant Shi’s Motion for joinder is denied.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2504852	THOMAS vs SHI	MOTION TO COMPEL ARBITRATION

Tentative Ruling:

Defendant Uber’s Motion to Compel Arbitration is denied.

The court should declines to rule on all evidentiary objections as immaterial to the court’s determination on this motion.